

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X Index No.:
JAMES HILL

Plaintiff,

SUMMONS

-against-

Plaintiff designates QUEENS
County as the place of trial.

CITY OF NEW YORK, POLICE OFFICERS
JOHN/JANE DOE(S).

The basis of venue is:
Incident Location

Defendants.

-----X
To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty (20) days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within thirty (30) days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
January 29, 2021.

NASS, ROPER & LEVIN, P.C.

By: HANNAH F. JOLY, ESQ.
Attorneys for Plaintiff
266 W 37th Street., Ste 801
New York, NY 10018
718-775-3246

Defendants' Addresses:

THE CITY OF NEW YORK
New York City Law Department
100 Church Street
New York, New York 10007

POLICE OFFICERS JOHN/JANE DOE(S)
1 Police Plaza,
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
JAMES HILL

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICERS JOHN/JANE
DOE(S).

Defendants.
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**VERIFIED
COMPLAINT**

Index:

**PLAINTIFF DEMANDS
TRIAL BY JURY ON
ALL ISSUES**

Plaintiff, by his attorneys, NASS, ROPER & LEVIN, P.C., complaining of the
Defendants, respectfully alleges, upon information and belief, as follows:

PARTIES

1. That at all times hereinafter mentioned, Plaintiff JAMES HILL (“HILL” or “Plaintiff”) was and is a resident of the City, and State, of New York.
2. That at all times hereinafter mentioned, defendants THE CITY OF NEW YORK (“the CITY”) was and still is a municipality organized and existing under and by virtue of the laws of the State of New York, which operates the New York City Police Department and as such is the public employer of the Defendant officers herein.
3. POLICE OFFICER(S) JOHN/JANE DOE(S) are New York City police officers, and at all relevant times hereto, acted in that capacity as agents, servants, and/or employees of the CITY and within the scope of their employment, responsible for their conduct as *respondeat superior*, except for the causes of action pursuant to 42 U.S.C. § 1983.
4. At all relevant times hereto, Defendants were acting under the color of state and local law. Defendants are sued in their individual and official capacities.

FACTUAL ALLEGATIONS

5. On November 1, 2019, HILL was lawfully a patient admitted to St. John's Hospital, located at 327 Beach 19th Street, Far Rockaway, New York 11691.

6. Without requisite reason, suspicion or cause, Defendant Officers' seized HILL, and pulled him out of the hospital bed in an aggressive manor. Defendant Officers' put HILL on a stretcher and attempted to move him out of the room. While holding the stretcher, Defendant Officers' dropped HILL on the ground, causing serious injury.

7. HILL did not resist and was subdued on the stretcher when the Defendant Officers' dropped him.

8. As a result of the Defendant Officers' assault, excessive force, and negligence, HILL suffers from an injured back, neck, ankles, and wrist, among other injuries.

9. That by reason of the foregoing, HILL suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

10. HILL in furtherance of the stated cause of action timely filed a Notice of Claim against the CITY, in compliance with the Municipal Law Section 50. The Notice of Claim properly filed and issued claim number, 2020PI003542.

11. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the CITY has failed to pay or adjust the claim.

12. That pursuant to GML 50-h a "50-h" hearing has not been held yet.

13. This action has been commenced within one (1) year and ninety (90) days after happening of the events, upon which these claims arise.

FIRST CAUSE OF ACTION
EXCESSIVE FORCE (Pursuant to §1983 and New York State Law)

14. Plaintiff incorporates herein by reference the allegations set forth in the proceeding paragraphs.

15. Defendants had no legal cause or reason to use excessive force in effectuating Plaintiff's arrest.

16. Defendants violated Plaintiff's Fourth, Eighth, and Fourteenth Amendment right to be free from unreasonable seizures and cruel and unusual punishment when they used excessive force against him.

17. That at the time of the arrest, Plaintiff did not pose a threat to the safety of the officers.

18. That Plaintiff was not actively resisting arrest or attempting to evade arrest.

19. That Plaintiff suffered serious permanent physical injuries from Defendants' use of excessive force.

20. That Defendants' actions were grossly disproportionate to the need for action and were unreasonable under the circumstances.

21. Upon information and belief, the attack on Plaintiff by Officer Defendants, was sadistic in nature and the cause of serious permanent physical injuries upon Plaintiff.

22. By reason of Defendants' acts and omissions, acting under color of state law and within the scope of his authority, in gross and wanton disregard of Plaintiff's rights, subjected Plaintiff to excessive force while effectuating his arrest, in violation of his rights pursuant to the Fourth, Eighth, and Fourteenth Amendments of the United States Constitution.

SECOND CAUSE OF ACTION
FAILURE TO INTERVENE Pursuant to §1983 and New York State Law

23. Plaintiff incorporates herein by reference the allegations set forth in the proceeding paragraphs.

24. Defendants are liable for preventable harm to Plaintiff because they knew excessive force was being used; they knew a Constitutional violation had been committed through the use of that force; and Defendants had a reasonable opportunity to intervene and prevent the harm from occurring and failed to do so.

THIRD CAUSE OF ACTION
MUNICIPAL LIABILITY PURSUANT TO § 1983

25. Plaintiff incorporates herein by reference the allegations set forth in the proceeding paragraphs.

26. That upon information and belief, in 2019, defendant CITY had a policy or routine practice of using excessive force when effectuating arrests.

27. That upon information and belief, it was the policy and/or custom of defendant CITY to inadequately train, supervise, discipline, and/or terminate their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.

28. That as a result of the above described policies and customs, the officers, staff, agents and employees of defendant CITY, believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

29. That the above described policies and customs demonstrate a deliberate indifference and gross and wanton disregard on the part of the policymakers of defendant CITY

to the constitutional rights of arrestees including HILL and were the cause of the violations of HILL's rights alleged herein.

FORTH CAUSE OF ACTION
NEGLIGENT HIRING & TRAINING

30. Plaintiff incorporates herein by reference the allegations set forth in the preceding paragraphs.

31. Upon information and belief, the CITY did not exercise reasonable care and diligence in the selection, engagement, employment and training of its servants, agents and/or employees, including Defendant Officers as to cause injuries to HILL.

32. Upon information and belief, the CITY, had prior knowledge of the inappropriate, unlawful, and improper conduct of servants, agents and/or employees including Defendant Officers, and continued to employ them and allowed them to be in contact with inmates and in control of their safety.

33. By reason of the foregoing, HILL, demands judgment for negligent hiring and retention against the City, in a sum exceeding the jurisdictional limits of all the lower courts.

FIFTH CAUSE OF ACTION
ASSAULT and BATTERY

34. Plaintiff incorporates herein by reference the allegations set forth in the proceeding paragraphs.

35. Defendant Officers' caused harmful bodily contact to Plaintiff.

36. Defendant Officers', in a hostile manner voluntarily caused Plaintiff's injuries including, but not limited to, an injured black, neck, angles and wrist.

37. Defendant Officers contact with Plaintiff constituted a battery in violation of the laws of the State of New York.

SIXTH CAUSE OF ACTION
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

38. Plaintiff incorporates herein by reference the allegations set forth in the proceeding paragraphs.

39. That as a result of the aforementioned extreme and outrageous conduct intentionally inflicted by Defendant Officers, employees of the New York City Police Department, and CITY, Plaintiff suffered severe emotional and/or mental distress, including but not limited to emotional overlay, depression, stress, anxiety, humiliation, embarrassment and tension.

40. That as a result of the foregoing intentional, extreme and outrageous acts of the Defendants, Plaintiff, suffered severe emotional and/or mental distress, all of which may be permanent in nature, and that as a result of the foregoing, the Plaintiff, has sustained damages, which exceed the jurisdictional limit of this Court.

SEVENTH CAUSE OF ACTION
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

41. Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

42. As a result of the aforementioned extreme and outrageous conduct that upon information and belief was negligently inflicted by Defendants, HILL suffered severe emotional and/or mental distress, including but not limited to emotional overlay, depression, stress, anxiety, humiliation, embarrassment and tension, serious permanent personal injuries of mind as well as special damages and loss and/or diminution in his enjoyment of life, and physical injuries, all of which are permanent in nature.

JURY DEMAND

43. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

CPLR SECTION 1602 STATEMENT

44. That this action falls within one or more of the exceptions set forth in the C.P.L.R. §1602.

1. CPLR Section 1602, Subdivision 7, relating to “the defendants’ having acted with reckless disregard for the safety of others”.

2. CPLR Section 1602, Subdivision 11, relating to “the defendants’ having acted knowingly or intentionally and in concert to cause the act or failures”.

CONCLUSION

WHEREFORE, Plaintiff, JAMES HILL, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts, punitive damages against defendants in an amount exceeding the jurisdictional limits of all lower Courts, reasonable attorneys’ fee and the costs and disbursements of this action, and any such other and further relief as the Court may deem appropriate.

Dated: New York, NY
January 29, 2021

Respectfully submitted,

NASS, ROPER & LEVIN, PC



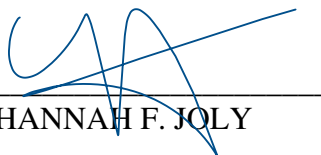
Hannah F. Joly
266 W 37th Street, Suite 801
New York, New York 10018
(718) 775-3246

ATTORNEY'S VERIFICATION

HANNAH F. JOLY, ESQ., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney and member of NASS, ROPER & LEVIN P.C., attorneys for Plaintiff, JAMES HILL. I have read the annexed VERIFIED COMPLAINT and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

DATED: New York, New York
 January 29, 2021


HANNAH F. JOLY

